

25TRCV02985 25TRCV02985

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-21

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Case Number: 25TRCV02985 Hearing Date: September 21, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

STEPHANIE

ROSAS,

Plaintiff,

Case No.:

25TRCV02985

vs.

[Tentative]

RULING

JOSEPH

L. DILLION,

Defendant.

Hearing

Date: September 21,
2026

Moving

Parties: Plaintiff Stephanie Rosas

Responding Party: Defendant Joseph Dillion

Motion

for Leave to File a First Amended Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED.

BACKGROUND

On September 2, 2025, plaintiff Stephanie Rosas filed a complaint against Joseph L. Dillion for negligence based on a motor vehicle accident.

LEGAL

AUTHORITY

CCP §

473(a)(1) provides, in relevant part:

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time

limited by this code.”

“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1047.

Under

CRC Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under

CRC Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Even

if a good amendment is proposed in proper form, a long, unwarranted and unexcused delay in presenting it may be a good reason for denial. In most cases, the factors for timeliness are: (1) lack of diligence in discovering the facts or in offering the amendment after knowledge of them; and (2) the effect of the delay on the adverse party. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 490. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488.

DISCUSSION

Plaintiff requests leave

to file a first amended complaint to add a claim for punitive damages under Civil Code 3294, with a corresponding prayer for exemplary damages.

The complaint alleges

that on July 7, 2024, defendant was operating a vehicle at West Manchester Blvd. and Belford Avenue, when he did negligently and carelessly fail to stop at the red light and then executed an unsafe left turn and did collide with plaintiff's vehicle, causing serious injuries and damages to plaintiff. Complaint, 6.

Plaintiff asserts that

in defendant's verified responses to Form Interrogatories, Set One, No. 2.13, served August 17, 2026, defendant disclosed that in connection with the operation of the vehicle on the date of the collision, he was taking three central nervous system depressant medications:

55 mg of methadone, .05 mg of clonazepam (Klonopin) in the morning and 1 mg in the evening, and 22 mg of mirtazapine.

Plaintiff contends that each of these medications carries federally approved labeling that expressly warns the patient not to drive or operate a motor vehicle while taking it and warns of the medication's sedating and impairing effects. Plaintiff argues that

such facts support a claim that defendant operated his vehicle while impaired, with knowledge of the danger, in conscious disregard of the safety of others, and therefore supports a claim for punitive damages. Plaintiff asserts that amendment would not be prejudicial.

In opposition, defendant

argues that plaintiff cannot recover punitive damages under a negligence cause of action. Defendant further contends

that even if plaintiff could recover punitive damages, plaintiff's proposed amendment fails to set forth a sufficient basis as the alleged conduct of defendant driving while on medication and running a red light does not amount to "maliciousness or willful and conscious disregard of the safety of others."

In reply, plaintiff

argues that the motion satisfies the requirements under Cal. Rules of Court, Rule 3.1324 and that a "merits" argument is premature.

The Court rules as

follows: The Court finds that

plaintiff's counsel's declaration complies with CRC Rule 3.1324.

Further, “[l]eave to
amend is in general required to be liberally granted.” Kolani v. Gluska (1998) 64 Cal. App. 4th
402, 412 (citation omitted). Finally,
there is no unexcused delay or prejudice to defendant.

ORDER

The motion is GRANTED.

Plaintiff shall file the amended complaint within 5 days.

Plaintiff is ordered to give notice of the ruling.